

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Decarolis	Team: Team # 8	CCRB Case #: 9904428	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 09/29/1999 5:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/29/2001	Precinct: 28		
Date/Time CV Reported Wed, 09/29/1999 7:12 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Wed, 09/29/1999 7:12 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Glenn Bove	00512	897059	PSA 5
2. POF April Arocho	06701	913914	PSA 5
3. POM Earl Lynch	26881	914850	PSA 5

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Laura Stuart	06471	914508	PSA 5
2. POM Anthony Rumph	04598	913189	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . POF April Arocho	Force: PO April Arocho used physical force against § 87(2)(b)	A . Unsubstantiated
B . POF April Arocho	Discourtesy: PO April Arocho spoke rudely towards § 87(2)(b)	B . Unsubstantiated
C . SGT Glenn Bove	Abuse of Authority: Sgt. Glenn Bove searched § 87(2)(b)	C . Unsubstantiated
D . POM Earl Lynch	Abuse of Authority: PO Earl Lynch searched § 87(2)(b)	D . Unsubstantiated
E . POF April Arocho	Abuse of Authority: PO April Arocho searched § 87(2)(b)	E . Unsubstantiated
F . POF April Arocho	Abuse of Authority: PO April Arocho searched § 87(2)(b) purse.	F . Unsubstantiated
G . POF April Arocho	Discourtesy: PO April Arocho spoke and acted rudely towards § 87(2)(b)	G . Unsubstantiated
H . POF April Arocho	Other: PO April Arocho made a false official statement when she denied that she searched § 87(2)(b) bag.	H . Other Misconduct

Synopsis

§ 87(2)(b) was stopped by Sgt. Glenn Bove, POs April Arocho and Earl Lynch based on a description, given to this field team by the observation post, which she matched very closely. § 87(2)(b) alleged that when she was stopped PO Arocho grabbed her arm, cursed at her, threw her against a nearby fence and again spoke discourteously to her. Then, § 87(2)(b) alleged that PO Arocho, along with Sgt. Bove and PO Lynch, searched her person and her bag. The officers eventually realized that § 87(2)(b) did not have drugs, and Sgt. Bove apologized for stopping § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It should be noted that PO April Arocho was § 87(2)(b) indicated that people have referred to her as Arocho-Mercedes, Arocho and/or Mercedes. In this report she is referred to as PO Arocho, however in other summaries included in the case file she is referred to by these other names.

Also, Sgt. Glenn Bove is currently assigned to the Internal Affairs Bureau, however at the time of this incident he was the SNEU supervisor at PSA 5.

Summary of Complaint

On September 29, 1999, § 87(2)(b) a § 87(2)(b) Black woman, was walking west on § 87(2)(b) on her way to the fish market near the corner of § 87(2)(b) and § 87(2)(b) (Enclosure 8a-f) § 87(2)(b) had just come from her job at § 87(2)(b) § 87(2)(b), and was wearing a black blazer, black pants and an olive green top. § 87(2)(b) was carrying her pocketbook and a Duane Reade bag that contained a bottle of Dove dish detergent, that had been on sale for \$ 0.99 at the drugstore, along with her umbrella. § 87(2)(b) was walking past a baseball field when she observed a dark green van slowly driving east towards her. § 87(2)(b) thought that the van was looking for a parking space, and noted that it looked like they were going to park in front of a fire hydrant. § 87(2)(b) thought to herself that they were going to get a ticket if they parked there when the van suddenly stopped. The middle sliding door opened and a white woman jumped out. The woman, identified as PO April Arocho, called out to § 87(2)(b) "Excuse me miss, just one moment." § 87(2)(b) recalled thinking that she was a White woman in the middle of Harlem, and was probably lost and in need of directions. § 87(2)(b) stopped to speak to the woman. When PO Arocho approached her, she suddenly grabbed § 87(2)(b) § 87(2)(b)'s left wrist and yanked her violently towards her saying, "Give me what you got!" (Allegation A) § 87(2)(b) thought she was being robbed. She yanked her wrist away, waving PO Arocho off, and said, "Get off me! What's wrong with you? What is your problem?" PO Arocho then grabbed both of § 87(2)(b) § 87(2)(b)'s wrists hard, and said, "Give me every fucking thing you have!" (Allegation B) § 87(2)(b) pulled away from PO Arocho again, at which point she grabbed her and slammed her against the fence near the baseball field. (Allegation A)

§ 87(2)(b) was convinced she was being robbed, and was struggling to free one of her hands in order to strike the woman. As § 87(2)(b) was struggling with PO Arocho against the fence, two White males jumped out of the van. One man, later identified as Sgt. Bove, exited from the passenger side, and the other male, identified by this investigation as PO Lynch, exited from the driver's side. Sgt. Bove grabbed § 87(2)(b) § 87(2)(b)'s right arm and began searching the pockets of her coat on the right side. (Allegation C) PO Lynch grabbed her Duane Reade bag and began going through her bag. (Allegation D) Meanwhile, PO Arocho searched § 87(2)(b) § 87(2)(b)'s left coat pockets, and attempted to go through § 87(2)(b) § 87(2)(b)'s purse, and § 87(2)(b) was struggling with all three of them to keep them away from her property. (Allegation E) PO Arocho eventually was able to enter the front pocket of the purse. (Allegation F) When PO Lynch finished looking in her bag he gave it back to her and returned to the van.

§ 87(2)(b) was shouting throughout this struggle, asking, "Who are you people? Get off me, what the hell do you want? What are you trying to do, rob me?" § 87(2)(b) was becoming "hysterical" and still

did not know who they were. As § 87(2)(b) had been walking to the fish market, she had noticed a man walking in front of her. When she was stopped and thrown against the fence, the man stopped and watched what was happening. The officers told him to leave but he refused, and asked § 87(2)(b) if she wanted him to leave. She said no. By this point, Sgt. Bove had gone under her jacket to check her inside pockets, and had removed, and then returned, a pack of Benson and Hedges from her jacket pocket. (Allegation C)

§ 87(2)(b) continually shouted, “Who the hell are you people,” until PO Arocho slowly unzipped the top of her jacket, tapped her badge, which was pinned high on her chest, forcefully with her index finger, and said, “This is who the hell I am.” (Allegation G) By this time the officers had stopped searching § 87(2)(b) after they realized that she did not have anything on her. When § 87(2)(b) saw the badge she went “ballistic” and told the officers that they were “a poor excuse” for police officers. § 87(2)(b) was furious and screaming, and informed Sgt. Bove that they all needed to be retrained. Sgt. Bove apologized and attempted to calm her down. § 87(2)(b) asked to see their badge numbers, including PO Lynch’s, and Sgt. Bove and PO Arocho gave them to her. PO Arocho then went back to the van and Sgt. Bove gave her all of their names. Sgt. Bove explained to § 87(2)(b) that she had fit the description of a Black woman wearing a black jacket and black pants, carrying a Duane Reade bag, who had just purchased drugs. § 87(2)(b) informed Sgt. Bove that she was angry that no one had bothered to identify themselves, and that she was going to file a complaint. Sgt. Bove continued to apologize.

§ 87(2)(b) noticed that three or four people had stopped to observe what was going on, and she approached these people to get their names. At this point, Sgt. Bove got back into the van and drove westward a couple car-lengths away and then parked. After § 87(2)(b) retrieved the names of the witnesses she went to the 028th precinct and filed a complaint.

§ 87(2)(b) could not give a description of these officers because she had been caught of guard and had been scared. § 87(2)(b) did recall Sgt. Bove’s name, and remembered that PO Arocho was a White/Hispanic female wearing jeans, a wool jacket and a baseball cap. § 87(2)(b) thought that PO Lynch had been a white officer, however when she went to the 28th precinct and gave them his shield number they told her he was a Black male officer.

§ 87(2)(b) viewed photo arrays of Sgt. Bove, PO Arocho and PO Lynch on February 23, 2000. (Enclosure 9a-d) § 87(2)(b) did not identify any of the subject officers.

Results of Investigation

§ 87(2)(g) On September 29, 1999 § 87(2)(b) was stopped by a SNEU field team consisting of Sgt. Glenn Bove, PO April Arocho and PO Earl Lynch. § 87(2)(b) was stopped based upon a description given by the observation posts, Det. Laura Stuart and PO Anthony Rumph. No drugs or weapons were found on § 87(2)(b) and she was not arrested or given a summons.

Civilian witnesses: The witnesses § 87(2)(b) and § 87(2)(b) were not interviewed by the CCRB. Telephone numbers for these two men were provided by § 87(2)(b) however neither telephone number was a working number. (Enclosure 22a-c) Further, no addresses were available for these men, and there was no way to retrieve further information with just their first names. § 87(2)(b) one of the other witnesses, did not know their last names, and calls to the church where they were presumably members were unsuccessful.

§ 87(2)(b) a § 87(2)(b) was interviewed at the CCRB on November 30, 1999. (Enclosure 10a-d) On September 29, 1999 § 87(2)(b) was sitting in his van in front of the church, talking with § 87(2)(b) and § 87(2)(b). While speaking they heard noise coming from across the street that sounded as if people were fighting. § 87(2)(b) asked what was happening, and § 87(2)(b) told him that it was a drug bust. § 87(2)(b) explained that § 87(2)(b) knew it was a drug bust because after the officers threw § 87(2)(b) against the fence they showed her their badges. (Allegation A) § 87(2)(b) was not sure if all three officers pushed her against the fence. § 87(2)(b) turned to the side so that § 87(2)(b) could see what was happening. § 87(2)(b) saw § 87(2)(b) with her hands up, looking very scared, shouting and asking what was going on. § 87(2)(b) heard someone tell § 87(2)(b)

§ 87(2)(b) “Be quiet! Be quiet!” § 87(2)(b) then saw a female officer, identified as PO Arocho, grab § 87(2)(b) s purse and look inside it. (Allegation B) § 87(2)(b) asked PO Arocho, “What are you doing looking in my private things,” and PO Arocho told her to be quiet. § 87(2)(b) heard § 87(2)(b) say that she could not believe that this was happening to her.

There were two male officers present, identified as PO Lynch and PO Bove, however § 87(2)(b) did not see either of these two officers touch § 87(2)(b) in any way. PO Arocho frisked and searched § 87(2)(b) at which time she realized that § 87(2)(b) did not have any drugs and gave her back her purse. § 87(2)(b) saw PO Arocho and one of the male officers return to the van after this, and the White male officer remained behind to apologize and speak to § 87(2)(b). § 87(2)(b) impression of this conversation was that this officer was very sorry about what had happened. § 87(2)(b) approximated that they spoke for about ten to fifteen minutes.

§ 87(2)(b) recalled that § 87(2)(b) was wearing a black dress suit with a beige sweater or shirt underneath, but he did not recall if she was carrying anything other than her purse. § 87(2)(b) did not observe any of the officers show § 87(2)(b) their badges. After the incident, § 87(2)(b) approached a man on her side of the street and took down his information. She then crossed the street and introduced herself to § 87(2)(b) and the other two men. They all gave her their names and contact information.

§ 87(2)(b) was interviewed at the CCRB on December 7, 1999. (Enclosure 11a-c) On September 29, 1999 § 87(2)(b) was walking west on § 87(2)(b) when he saw a Hispanic woman, identified as PO Arocho, get out of a dark green van and “accost” § 87(2)(b). PO Arocho rushed at § 87(2)(b) and pushed her against a nearby fence in a very aggressive way. As § 87(2)(b) walked closer he observed that there was a male sitting in the van, and another White male standing next to PO Arocho, and § 87(2)(b) realized that they were police officers. Upon this realization, § 87(2)(b) decided to stay and watch because § 87(2)(b) was alone. § 87(2)(b) stated that he observed that when PO Arocho ran up and threw § 87(2)(b) against the fence, § 87(2)(b) did not attempt to run away. The other two officers watched when PO Arocho threw § 87(2)(b) against the fence.

While § 87(2)(b) was standing near the group only the White male officer was talking to § 87(2)(b) and PO Arocho still appeared to be in “attack mode.” The officers questioned § 87(2)(b) as to where she was going and what was in her bag. He did not see any of the officers search her or her bag. § 87(2)(b) kept asking the officers who they were, and why they were bothering her. § 87(2)(b) finally asked to see the officers’ badges, at which time they showed her. This was the first time that § 87(2)(b) saw any of their badges. § 87(2)(b) heard the officers tell § 87(2)(b) that she fit the description of someone who had stolen something from Duane Reade. The description was of a woman wearing a green coat, black pants and carrying a Duane Reade bag. At some point, the other officer who had been sitting in the van, a Black male officer, exited the van. This officer was identified as PO Lynch.

The White male officer, identified as Sgt. Bove, told § 87(2)(b) that he was in charge, gave her his badge number and apologized. § 87(2)(b) asked PO Arocho directly to see her badge. § 87(2)(b) observed PO Arocho show § 87(2)(b) her badge, but explained that Sgt. Bove gave § 87(2)(b) her name. PO Arocho and PO Lynch went back to the van and got in after showing § 87(2)(b) their badges. § 87(2)(b) and Sgt. Bove spoke for approximately ten minutes. § 87(2)(b) explained to the officer that she was just coming from work, that she had children and that she was not some delinquent.

§ 87(2)(b) described the White male officer as being 5’9”-5’10” with dirty blonde hair, in his mid to late thirties. The female officer was described as being Hispanic, 5’6” and 135 lbs., wearing a hat and an orange top. The Black male officer was described as being fair-skinned with close cut hair, approximately 185 lbs., and in his early thirties.

Officer identification: The officers in this case were identified by the civilians’ testimonies, the tactical plan and the officers’ own testimonies. In this particular field team, there is only one female officer and one Black officer, § 87(2)(g). § 87(2)(b) initially thought that there were two White male officers, however she herself explained that she was not sure who the officers were because she had been so upset and taken by surprise. She also mentioned that while at the precinct, she had been told that

the shield number for the third officer was for a Black male officer, now identified as PO Lynch, the only Black male officer in the field team. § 87(2)(b) knew Sgt. Bove's name and PO Arocho's name when she filled out her Civilian Complaint report after the incident. (Enclosure 6a-e)

Officer statements: Det. Laura Stuart and PO Anthony Rumph were interviewed at the CCRB on April 4, 2000. (Enclosures 15a-e and 16a-e) Both Det. Stuart and PO Rumph confirmed the description of the woman who purchased drugs. The officers also asserted that they observed a male receive money from this woman, whom they identified as § 87(2)(b) in exchange for several small items that were placed in her hand. The officers observed this transaction from a rooftop with the use of binoculars, and they indicated that the particular location was a drug-prone area. Three other people who purchased drugs from this male individual were arrested. The SNEU Description/Tac Sheet, which was filled out by the observation post, provided a description of the individual who was seen purchasing drugs, and this description matches § 87(2)(b) (Enclosure 18)

PO April Arocho was interviewed at the CCRB on April 4, 2000. (Enclosure 12a-f) PO Arocho was working with the SNEU field team on September 29, 1999, and was in the apprehension vehicle with Sgt. Bove and PO Lynch. The team was driving eastbound on § 87(2)(b) when they saw a woman walking westbound who fit the description that had been transmitted to them from the observation post. PO Arocho described the woman, identified as § 87(2)(b) as being heavysset, wearing all black and a green sweater, and carrying a Duane Reade bag. § 87(2)(b) was walking casually, and when the van stopped at the curb she just looked at them. There was no one else on the sidewalk at this time. PO Arocho, who was seated in the backseat near the door, exited the van with her shield out and approached § 87(2)(b) PO Arocho asked § 87(2)(b) to stop where she was, told her who she was and that she had just been observed purchasing drugs.

§ 87(2)(b) was stopped in the middle of the block near an empty lot with a chain-link fence. PO Arocho recalled that there was a church and possibly a flea market in the area. § 87(2)(b) told PO Arocho that she had not bought any narcotics, and pushed PO Arocho in the upper chest and shoulder area with both of her hands. § 87(2)(b) began screaming and shouting at this time. PO Arocho fell back a little, and grabbed § 87(2)(b)'s left wrist for both balance and to restrain her, and informed her again that she was a police officer. PO Arocho approximated that § 87(2)(b) was 5'8" and 280 lbs. Upon seeing § 87(2)(b) push PO Arocho, Sgt. Bove and PO Lynch exited the van. PO Lynch walked up and told § 87(2)(b) that PO Arocho was a police officer and that she was going to have to calm down. He also told § 87(2)(b) that they were going to explain why she was being stopped. (Later in the interview PO Arocho stated that she did not recall this conversation taking place.) Sgt. Bove walked over and sent PO Arocho back to the van, and then explained to § 87(2)(b) why she had been stopped. PO Arocho maintained that she never put § 87(2)(b) against the fence. PO Arocho stated later in her interview that she patted § 87(2)(b) down while Sgt. Bove was explaining to § 87(2)(b) why she had been stopped. PO Lynch went back to the van with PO Arocho. § 87(2)(b) calmed down after PO Arocho went back to the van, and PO Arocho heard § 87(2)(b) explain that she was embarrassed because she lived in the neighborhood. PO Arocho suggested that Sgt. Bove may have sent her back to the van because he might have thought that it would be easier for § 87(2)(b) to calm down if PO Arocho was not present. PO Arocho denied being upset that § 87(2)(b) pushed her. While in the van, PO Arocho heard Sgt. Bove ask § 87(2)(b) pedigree questions for the Stop and Frisk report (UF-250), and heard § 87(2)(b) ask for their shield numbers.

PO Arocho explained that she was wearing an orange "pullover" that opened down the middle. PO Arocho was wearing her vest underneath her shirt, and her shield was resting high on her vest. PO Arocho could not explain why she did not indicate on the Stop and Frisk Report, UF-250, that § 87(2)(b) had been frisked, and suggested that she may have marked the wrong box. (Enclosure 17) PO Arocho's memo book stated that § 87(2)(b) "swung" at PO Arocho. (Enclosure 12a-c) PO Arocho explained that she writes what is in her memo book to help her remember, not necessarily to reflect what really happened.

According to the Stop and Frisk report § 87(2)(b) was stopped for three minutes, however she was neither frisked nor searched. (Enclosure 17) The report also details that force was used in order to restrain § 87(2)(b) but no contraband or weapons were found. PO Arocho filled out the report and Sgt. Bove

signed off on the report. PO Arocho's memo book provides a description of the incident. (Enclosure 12a-c) In her memo book it is denoted that § 87(2)(b) "swung" at her after she told PO Arocho that she did not have anything.

Sgt. Glenn Bove was interviewed at the CCRB on April 4, 2000. (Enclosure 13a-f) Sgt. Bove could not recall the description of the woman who purchased drugs given by the observation post, but confirmed that he had some sort of clothing description. When they spotted § 87(2)(b) PO Lynch, who was driving, and PO Arocho, who was seated in the back, jumped out of the van and stopped § 87(2)(b) Sgt. Bove stayed in the van, monitoring the radio. He did not recall hearing PO Arocho identify herself when she exited the van, and did not recall how PO Arocho was wearing her badge. After a minute passed and § 87(2)(b) § 87(2)(b) had not been arrested, Sgt. Bove exited the van to find out what was going on. § 87(2)(b) seemed agitated, and PO Arocho informed Sgt. Bove that no drugs were found. Sgt. Bove instructed PO Arocho to fill out a UF-250, at which time PO Arocho began to take down § 87(2)(b)'s pedigree information. Sgt. Bove never observed PO Arocho and § 87(2)(b) become physical, and he stated that if PO Arocho had been physical with § 87(2)(b) she would have informed him. Sgt. Bove spoke with § 87(2)(b) § 87(2)(b) for a couple minutes, explained why she had been stopped and apologized to her.

Sgt. Bove was shown the Stop and Frisk report, which indicated that § 87(2)(b) had not been frisked and no weapons or contraband had been found, but that she had been physically restrained. Sgt. Bove stated that the decision whether to frisk the individual or not would be made by the officer who initially stopped the person. In this case, Sgt. Bove maintained that the decision would have been made by PO Arocho.

PO Earl Lynch was interviewed at the CCRB on April 4, 2000. (Enclosure 14a-e) PO Lynch confirmed the description of § 87(2)(b) given by the observation post, and stated that they indicated § 87(2)(b) had bought crack cocaine. When the field team spotted § 87(2)(b) PO Arocho, who was seated in the front passenger seat, exited the van. PO Lynch, who was seated in the back of the van, exited the van a couple seconds after PO Arocho. PO Lynch observed PO Arocho approach § 87(2)(b) at which time § 87(2)(b) § 87(2)(b) pushed PO Arocho's arm away. PO Lynch initially denied PO Arocho reaching for § 87(2)(b) but then stated that PO Arocho must have had her arm out in order for § 87(2)(b) to push her arm in the manner in which she did. PO Arocho then restrained § 87(2)(b) by holding her arm, and explained to her that she was a police officer. PO Lynch maintained that § 87(2)(b) needed to be restrained because she knew that PO Arocho was a police officer and pushed her any way.

§ 87(2)(b) became very upset, at which time Sgt. Bove exited the van, approximately ten seconds after PO Lynch, and explained the situation to § 87(2)(b) PO Arocho patted § 87(2)(b) down, but Sgt. Bove decided that § 87(2)(b) should not be searched. An UF-250 was prepared. PO Arocho and PO Lynch returned to the van, and PO Lynch explained that PO Arocho had been upset that she had been pushed. PO Lynch asserted that PO Arocho was wearing her shield around her neck, and that it was visible when she exited the van. However, PO Lynch did concede that there was a span of time after PO Arocho left the van that her shield could have been obscured and he would not have known.

PO Lynch indicated that he understood a "frisk" and a "search" to be the same thing. PO Lynch maintained that when you pat someone down, you pat the outside of the person's clothing, and that this is not the same thing as a "frisk."

Conclusions and Recommendations

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

“totality of the circumstances standard” set forth in New York Search and Seizure. This standard concludes that there are three factors that are relevant in determining probable cause: the “telltale sign” of drug activity, a drug-prone area, and the experience of the officer. (Enclosure 2d) § 87(2)(g)

PO Arocho maintained in her interview that she was pushed forcefully by § 87(2)(b) when she initially encountered her, and that she had to restrain § 87(2)(b) by grabbing her arm. Yet, PO Arocho wrote in her memo book that § 87(2)(b) “swung” at her. PO Arocho explained that what she writes in her memo book is not so much an indication of what actually took place, but is simply a prompt to help her remember what happened. PO Lynch observed § 87(2)(b) push PO Arocho’s arm away, as if PO Arocho was reaching for her, but did not confirm PO Arocho’s description of the push. Sgt. Bove did not observe § 87(2)(b) become physical with PO Arocho in any way, and maintained that if there had been a physical encounter (or if PO Arocho had had to restrain § 87(2)(b) she would have told him about it. According to § 87(2)(b) PO Arocho initially grabbed her arm, which she yanked away from her and “waved” off. This corresponds to the motion PO Lynch described, and the swinging motion that PO Arocho described in her memo book. § 87(2)(b) also stated that PO Arocho then took her and slammed her against the fence. This version of events was confirmed by § 87(2)(b) who witnessed the action. However, § 87(2)(b) did not confirm § 87(2)(b)’s description of PO Arocho grabbing her arm first. § 87(2)(b) also confirmed that he heard a noise that sounded like people struggling against the fence, and was told by his friend § 87(2)(b) that § 87(2)(b) had been put against the fence.

§ 87(2)(b)

Patrol Guide procedure 203-11 states that all officers must “use minimum necessary force.” (Enclosure 2a) Yet, Section 35.30 of the Penal Law states that an officer “may use physical force when and to the extent he reasonably believes such to be necessary to effect the arrest...” (Enclosure 2b) § 87(2)(g)

Therefore, it is recommended that Allegation A be Unsubstantiated.

§ 87(2)(b) alleged that when PO Arocho grabbed her arm she stated something to the effect of, “Give me every fucking thing you have!” § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation B be Unsubstantiated.

PO Arocho, when confronted with the UF-250, § 87(2)(g) suggested that she had made a mistake and checked the wrong box, and that she had actually meant to mark “no” for whether they had searched inside § 87(2)(b) s clothes. However, the “search” box was also marked “no” on the UF-250. Additionally, PO Lynch could not determine the difference between a “frisk” and a “search,” § 87(2)(g) Sgt. Bove stated that § 87(2)(b) was not searched, but also testified that he was in the van for a full minute before he exited, and that he only exited after he saw that § 87(2)(b) had not been arrested. § 87(2)(b) maintained that PO Arocho searched her clothes and her purse, that Sgt. Bove searched her clothes and that PO Lynch searched her Duane Reade bag. Neither of the independent witnesses observed either of the male officers search § 87(2)(b) or her belongings. And, the only search that was observed by an independent witness was of § 87(2)(b) s purse. § 87(2)(g)

Therefore, it is recommended that Allegations C, D and E be Unsubstantiated.

None of the officers recalled § 87(2)(b) carrying a purse. However, § 87(2)(b) testified that he saw PO Arocho look in § 87(2)(b) s purse, § 87(2)(g)

Therefore, for the reasons stated above, it is recommended that Allegation F be Unsubstantiated.

§ 87(2)(b) described a very exact motion when she alleged that PO Arocho partially unzipped her coat and pointed to her badge pinned high on her chest and said, “This is who the hell I am.” PO Arocho, § 87(2)(g) stated that she was wearing a “pullover” that opened down the middle. She also explained that she was wearing her bullet-proof vest underneath her shirt, and that her shield was worn over her vest which was underneath her shirt. PO Lynch stated that PO Arocho was upset that she had been pushed, even though PO Arocho denied being upset, and PO Arocho testified that Sgt. Bove had sent her back to the van. Further, § 87(2)(b) described PO Arocho as being in “attack mode.” § 87(2)(g)

it is recommended that Allegation G be Unsubstantiated.

§ 87(2)(g)

it was decided by this investigation to cite her for “Other Misconduct Noted,” § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: